

Tentative Rulings for August 31, 2026 Department 5

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 5 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 782 8254**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2401385	MONTOYA vs RAMIREZ	MOTION TO BE RELIEVED AS COUNSEL FOR ANDRES PEREIRA

Tentative Ruling:

The motion to be relieved as counsel is granted. Counsel is relieved as counsel of record for client effective upon the filing of the proof of service of the signed order being served upon client. If the proof of service is not filed, counsel will remain counsel of record for all purposes related to this action.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2402839	BARTELS VS REGENTS OF THE UNIVERSITY OF CALIFORNIA	MOTION FOR RELIEF FROM ANY WAIVER OF JURY TRIAL AND TO PERMIT PAYMENT OF JURY FEES

Tentative Ruling:

A party demanding a jury trial must post jury fees on or before the date scheduled for the initial case management conference in the action, and failure to do so waives the party's right to a jury trial. (C.C.P., § 631(c), (f)(5).) However, "[t]he court may, in its discretion upon just terms, allow a trial by jury although there may have been waiver of a trial by jury." (C.C.P., § 631(g).) The primary consideration in determining whether to grant relief from waiver is whether it "would result in any hardship to other parties or to the court, such as delay in rescheduling the trial for a jury or inconvenience to witnesses." (*TriCoast Builders, Inc. v. Fonnegra* (2024) 15 Cal.5th 766, 779.) "[C]ourts have also regularly considered other factors, including the timeliness of the request; whether the requester is willing to comply with applicable requirements for payment of jury fees; and the reasons supporting the request." (*Id.* at 779-780.) Courts may "forgive a party's technical noncompliance when the party has fulfilled the core objective of the statute, which is to give timely notice that a jury is demanded." (*Id.* at 782.) Doubts should be resolved "in favor of according to a litigant a jury trial." (*Id.* at 783.)

Plaintiff states he requested a jury trial in his initial CMC statement, as well as the joint stipulation re TSC. (Bartels Decl.) He states he attempted to pay jury fees on three unspecified dates but were rejected, and that he remains ready and willing to pay the \$150 fee immediately upon the Court's direction to the Clerk to accept it. (*Id.*) The parties had proceeded for years as though there would be a jury trial of all claims. Defendants state they assumed Plaintiff posted the jury fees. Defendants' assertion that Plaintiff "may attempt to use this request for relief, or perhaps the current status of this matter as a bench trial, to continue trial," is speculative at this juncture and not a basis to deny the request. **The motion is granted, and Plaintiff is ordered to post jury fees within 2 court days. An Order to Show Cause Re: Sanctions Not to Exceed \$1,500 or Revert to Court Trial is set for September 17, 2026, at 8:30 a.m.**

3.

CASE #	CASE NAME	HEARING NAME
CVRI2502807	SILVA VS COUNTY OF RIVERSIDE	DEMURRER

Tentative Ruling:

The meet-and-confer requirement has been met.

The Government Claims Act is “a comprehensive statutory scheme that sets forth the liabilities and immunities of public entities and public employees for torts.” (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 969, fn. 5.) Under the Act, liability of a public entity may be direct or derivative. (*McCarty v. State of California Dept. of Transp.* (2008) 164 Cal.App.4th 955, 975.)

A public entity such as the County can only be held directly liable for violation of a duty imposed by statute or law. The Act declares that except as otherwise provided by statute, “a public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.” (Gov. Code, § 815, subd. (a).) This means that “there is no [governmental] entity liability, unless it is established by statute.” (*Bradford v. State of California* (1973) 36 Cal.App.3d 16, 19; Code Civ. Proc., § 815.6.) “ [T]here is no common law tort liability for public entities in California; such liability is wholly statutory. [Citations.] [Citations.]” (*Ibid.*)

A public entity is ordinarily vicariously liable “for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.” (Gov. Code, §815.2(a).)

First, the fact a cause of action is identical to another is not a cause for a demurrer. (*McDonell v. American Trust Co.* (1955) 130 Cal.App.2d 296, 303 [“ ‘redundancy’ is not a cause for demurrer as it is not one of the grounds for demurrer’ ”].) The County demurs to the first cause of action for general negligence/ violation of Government Code on the ground that the TAC merely copies its prior allegations without change. The Court has previously sustained the demurer on the first cause of action alleged in Plaintiff’s SAC for lack of allegation of any statutory basis giving rise to a mandatory duty to hold the County directly liable on either a negligent supervision/training or negligent entrustment theory. It is true, as the County notes, the allegations supporting the first cause of action remain unchanged. Other than renumbering and reorganizing the allegations supporting the first cause of action into a separate attachment (Attachment 1), the TAC does not differ in any manner to the SAC. Like the SAC, Plaintiff’s first cause of action alleges series of overly padded and generalized allegations and references numerous provisions of the Government Code (§§ 815. 815.4, 815.6, 820) and Vehicle Code (§§ 21056, 21453, 21800, 22350, 17001) without supplying the specific facts directly related to any of these provisions. Plaintiff concedes as much and asserts that the same facts and statutory bases supporting his second cause of action (Gov. Code, § 815.2; Veh. Code, § 17001) also provides the bases for

his first cause of action. Absent a separate basis for a mandatory duty, the first cause of action is merely duplicative of the second cause of action on which the previous demurrer was overruled. However, Plaintiff is correct in noting that the duplicative nature of the causes of action is not a ground to sustain a demurrer listed under Code of Civil Procedure section 430.10. Nor is it a proper ground to move to strike. (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 890 [noting elimination of redundancy as a ground to strike rested on rationale “that it is a waste of time and judicial resources to entertain a motion challenging part of a pleading on the sole ground of repetitiveness”].)

Second, although no direct liability for negligent supervision/training is alleged, the allegations are sufficient to support a claim the County is vicariously liable for the negligence of other employees who were responsible for hiring, supervising, training, or retaining the employee. It is true negligent hiring is a form of direct liability; the fault is the employer’s own failure to act with due care in selecting the and managing employees. (*Flores v. Autozone West, Inc.* (2008) 161 Cal.App.4th 373, 383-384.) Negligent hiring occurs where an employer knows or should know that an employee creates a risk of a particular harm, and that harm materializes. (*Doe v. Capital Cities* (1996) 50 Cal.App.4th 1038, 1054.) As mentioned above, a public entity cannot be directly liable for common law tort unless mandated by statute, and a direct tort claim against a governmental entity for negligent hiring and supervision, when not grounded in the breach of a statutorily imposed duty owed by the government to the injured party, cannot lie. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 867.) However, in *C.A.* (an action by student against a school district for sexual assault by guidance counselor), the court distinguished the claim for negligent hiring or supervision directly against the school district to one based in respondeat superior for the negligence of other employees who were responsible for hiring, supervising, training, or retaining the employee who committed the misconduct. (*Id.* at 868; Gov. Code, § 815.2.) Therefore, a public entity may be vicariously liable for negligent supervision, retention, or hiring committed by its supervising employees. (See *Roe v. Hesperia Unified School District* (2022) 85 Cal.App.5th 13, 25.)

The County argues that, in order to allege a cause of action for negligent supervision/training, Plaintiff must provide details such as a claimed employee who was unfit, that this unfitness caused the incident, that another employee of County was responsible for hiring/supervision, and knew of the alleged unfitness. However, generalized pleading is acceptable for claims based on vicarious liability for acts committed in the scope of employment. (See *Rannard v. Lockheed Aircraft Corp.* (1945) 26 Cal.2d 149, 157.) Here, the TAC alleges that the County is liable for the acts of supervising employees’ negligent hiring, training, and supervision of Defendant Lufkin in operating the County’s vehicle and that Defendants actually and proximately caused damages to Plaintiff and his vehicle. (TAC, Attachment One, pg. 5, ¶ 11.) The County cites no statute or decision requiring a plaintiff to specify at the pleading stage which of the defendant’s employees committed the negligent acts or omissions for which a public entity is allegedly liable under section 815.2. As noted by the Supreme Court, there is no authority which requires that the “plaintiff must specifically plead, before undertaking

discovery, the identity of a government employee whose alleged negligence is made the basis for vicarious liability under section 815.2, and ... such an impracticable rule would be consistent with the legislative intent in enacting that statute. [Citation.] (*C.A., supra*, 53 Cal.4th at 872, citing Sen. Legis. Com. com., reprinted at 32 West's Ann. Gov. Code (1995 ed.) foll. § 815.2, p. 179 ["Under this section, it will not be necessary in every case to identify the particular employee upon whose act the liability of the public entity is to be predicated"].)

The demurrer is overruled.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2503346	THOMAS VS ANIMAL HOSPITAL OF EAGLE GLEN	MOTION TO COMPEL DEPOSITION ANSWERS

Tentative Ruling:

The Amended Declaration of Ben Twisk ("Amended Twisk Decl.") shows compliance with the meet-and-confer requirement.

At the June 16, 2026 deposition of Defendant Christine Farrar, defense counsel instructed the witness not to answer four separate lines of proper questions. The centerpiece of the improper instructions concerns two video recordings that Plaintiff made of a December 16, 2024 disciplinary confrontation. Defense counsel took the position that the recordings are "confidential communications" that violate Penal Code section 632, and on that basis instructed Ms. Farrar not to answer any question "related to the video, the contents of the video," or the second recording. (Christine Farrar Depo. 89:1-18; 90:12-22.)

The instruction was improper for two reasons. First, the recordings are not "confidential communications" within the meaning of Penal Code section 632, because the recorded conversations occurred in circumstances in which the parties could reasonably expect to be overheard. One conversation occurred in an open, public shopping-center patio and, for the second recording, the public lobby of a veterinary clinic. Ms. Farrar's own testimony, and that of Plaintiff, confirm as much. Second, even if section 632 applied (it does not), a section 632 objection is not a privilege, a court-ordered limitation, or a basis to suspend the deposition for a protective order, which are the only three grounds on which counsel may properly instruct a deponent not to answer. (*Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1014-1015.)

The Opposition never responds to the above. It does not cite *Stewart* or section 2025.460, and it identifies no privilege, no court-ordered limitation, and no motion for a protective order, because Defendants did not seek a protective order. Instead, Defendants argue only that the recordings are inadmissible. Admissibility is a question that this Court decides on a proper record and is not a basis for counsel to foreclose the

examination. "Objections to the competency of the deponent, or to the relevancy, materiality, or admissibility at trial of the testimony or of the materials produced are unnecessary and are not waived by failure to make them before or during the deposition." (Code Civ. Proc. § 2025.460(c).) The Court in *Stewart* put it aptly, "[i]n other words, deponent's counsel should not even raise an objection to a question counsel believes will elicit" the types of testimony referenced in Section 2025.460, subdivision ©. (*Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1014.)

Per Plaintiff notes that an argument left unanswered in opposition is conceded, and the concession resolves the recordings issue: whatever the ultimate admissibility of the videos, Ms. Farrar was required to answer. That she has already acknowledged the recording on the record ("You've got a video of it." (Exhibit A 99:16)), and that defense counsel stipulated to no waiver (*Id.* at 90:3-22), only confirm that there is no basis to withhold the testimony.

As noted by Plaintiff, even on the merits, the recordings are not "confidential communications." The test for confidentiality is objective: whether, under the circumstances, a party could reasonably expect that the conversation was not being overheard or recorded. (Pen. Code, § 632, subd. (c); *Frio v. Superior Court* (1988) 203 Cal.App.3d 1480, 1488.) Defendants' own authority is to the same effect. The undisputed testimony forecloses any such expectation here. The *first conversation* took place at the outdoor Subway tables in the shopping center, in the evening, in an unfenced area with no walls, directly in front of an open Subway, an Italian restaurant, and a sushi restaurant, where Ms. Farrar did not speak in a hushed tone and was "literally yelling," and where a passerby in fact walked up to ask for directions during the confrontation. (Exhibit A 77:19-25; 92:1-93:4; 103:5-104:23; 107:23-108:25; Exhibit B 162:23-164:15; 170:18-173:6.) Ms. Farrar could not say whether anyone was in the surrounding restaurants or whether cars were present, and she never checked. (Exhibit A 109:6-110:22.) The *second conversation* occurred in the clinic lobby, open to the public, in front of two waiting clients and a receptionist (none of whom were parties to the conversation), and surrounded by windows. (Exhibit B 174:20-177:20.)

Defendants imply section 632 excludes only communications made at a "public gathering," but the statute independently excludes any communication made "in any other circumstance in which the parties to the communication may reasonably expect that the communication may be overheard or recorded." (Pen. Code, § 632, subd. (c).) That is what happened here.

Applying the objective test, the Court of Appeal has held that recordings of confrontational conversations in public places are not confidential communications. In *Malinowski v. Martin* (2024) 104 Cal.App.5th 559, 572, the court held that recordings were not confidential because "the communications were made during supervised exchanges that took place in a public parking lot during daylight hours, and the parking lot was adjacent to businesses and public buildings... the commotion during the exchanges often attracted the attention of bystanders... [T]he circumstances were such that the parties to the exchanges could reasonably expect their statements to be

overheard at any time by members of the public who happened to be nearby.” Likewise, in *People v. Pedersen* (1978) 86 Cal.App.3d 987, 994, the court approved the admission of a surreptitiously recorded confrontation in which several principals questioned an employee about alleged wrongdoing, holding the meeting was not a confidential communication, despite that communication taking place in a private office. Here, Defendants’ try to distinguish *Malinowski* and *Pedersen* but as noted by Plaintiff, this effort only confirms Plaintiff’s position rather than rebutting it. Defendants say *Malinowski* turned on “court-ordered supervised visitation exchanges where the parties knew they were being recorded.” But the *Malinowski* court’s holding rested on the public location and the resulting expectation of being overheard: the communications were made “in a public parking lot ... adjacent to businesses and public buildings,” where “the parties to the exchanges could reasonably expect their statements to be overheard at any time by members of the public who happened to be nearby.” (*Malinowski v. Martin* (2024) 104 Cal.App.5th 559, 572.) Those are the circumstances here. Whether a party subjectively knew that a recording was being made is beside the point; section 632 turns on the objectively reasonable expectation that a communication “may be overheard or recorded,” not on knowledge of the recording. Defendants concede that *Pedersen* found no confidential communication even though the recorded confrontation occurred in a private office. (*People v. Pedersen* (1978) 86 Cal.App.3d 987, 994.) If a confrontation in a private office is not confidential, a confrontation at public restaurant tables and in a public clinic lobby with non-participant bystanders present is not either. Next, Defendants’ reliance on what the video does or does not depict is misplaced. That the recording does not show bystanders or a receptionist says nothing about whether third parties could reasonably be expected to overhear; the objective inquiry looks to the circumstances of the conversation, not to the camera’s field of view. Nor may Defendants rely on Ms. Farrar’s subjective intent to conduct the conversation where coworkers would not overhear. A subjective hope of privacy does not create an objectively reasonable expectation of privacy, and it is contradicted by her own testimony as well as Plaintiff’s. (Exhibit A 92:16-23; 96:23-97:4.) Because the recordings are not confidential communications, and because, in any event, a section 632 objection cannot support an instruction not to answer, Plaintiff is entitled to an order compelling Ms. Farrar to answer questions authenticating and addressing both recordings.

Defendants now contend that Plaintiff produced the recordings shortly before the deposition and thereby engaged in “deposition by ambush.” (Defendants’ Opposition 2:23.) The argument fails. First, the timing of a document’s production is not a permissible basis for an instruction not to answer. (*Stewart, supra*, 87 Cal.App.4th at pp. 1014-1015.) There is likewise no rule that a deponent may answer questions only about documents her attorney has reviewed in advance. A witness may be examined about a document produced at or before the deposition regardless of whether opposing counsel has previously studied it.

Further, Plaintiff’s premise is factually baseless. The recordings were produced before Ms. Farrar’s deposition, not during it, and Plaintiff’s counsel then gave defense counsel more than an hour to review them during the lunch recess. (Exhibit A 84:5-25.) The

combined running time of both videos is less than three minutes. (Exhibit D; Exhibit E.) Defense counsel could have reviewed the recordings before the deposition and elected not to. Plaintiff should not be penalized, and Ms. Farrar's testimony should not be withheld, because defense counsel was unwilling to spend fewer than three minutes watching the videos before examining the witness about them.

Defendants respond to the hearing-condition instruction with a constitutional-privacy balancing analysis. Every person enjoys a constitutional right to privacy with respect to his or her medical condition. (Cal. Const., art. I, § 1.) In assessing whether constitutional privacy protections apply, courts consider whether (1) a legally protected privacy interest exists, (2) the individual has a reasonable expectation of privacy, and (3) the challenged conduct constitutes a serious invasion of that interest. (*Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 35-37; *Williams v. Superior Court* (2017) 3 Cal.5th 531, 552.) Once a protected interest is established, the court must carefully balance the right to privacy against the need for disclosure. (*Valley Bank of Nevada v. Superior Court* (1975) 15 Cal.3d 652, 657.)

Here, the balance favors disclosure. Ms. Farrar injected her hearing into the record, testifying she could not have overheard the conversation if she walked out of the nearby Subway “[b]ecause I have a hearing problem,” and confirming that she has medical records of the condition. (Exhibit A 105:16-20.) Having offered her hearing as affirmative evidence on a central section 632 question, she placed it directly at issue, and her ability to perceive her surroundings is plainly relevant and discoverable. (Code Civ. Proc., § 2017.010.) Plaintiffs are right that Defendants’ argument that the recording itself depicts the volume of the conversation goes to the weight of the evidence, not to its discoverability, and it concedes that audibility is a live and relevant issue.

Plaintiff inquired of Mrs. Farrar whether employees who voted on the alternative workweek schedule in ~ 2021 were compensated “for their time by clocking in on the ... time clock system” (Twisk Decl., Ex. A, pp. 149:16-18, 155:1-3.) Defense counsel invited Plaintiff to make an offer of proof regarding relevancy given that: (1) Mrs. Farrar was not employed at the time the vote commenced; in fact, she was not hired until ~ three years later, (2) the compensation of employees in connection with the vote does not have any bearing on whether an alternative workweek is lawful, and (3) Plaintiff is not pursuing a representative wage and hour action on behalf of any other employee. (Id., pp. 155:1- 156:13.) Plaintiff, however, declined to provide any explanation for the relevancy of the subject matter. (Id.)

Defendant contends Plaintiff’s line of questioning constitutes an improper “fishing expedition” that has no bearing on this present action and is not reasonably calculated to reasonably lead to admissible evidence. Relevance is not a permissible ground for an instruction not to answer. (*Stewart, supra*, 87 Cal.App.4th at pp. 1014-1015.)

Defendants argue Ms. Farrar answered the fact-specific questions and cannot be compelled to answer a “hypothetical.” But the objection actually made at the deposition, that the witness is not here as an expert, is a form and relevance objection, and neither

authorizes an instruction not to answer. (*Stewart, supra*, 87 Cal.App.4th at pp. 1014-1015.) Whether a layperson may opine that a particular comment is mocking goes to the weight of the testimony and is preserved for trial; it is not a basis to refuse to answer at all. The question bears directly on Plaintiff's pregnancy-discrimination and harassment claims and is discoverable. (Code Civ. Proc., § 2017.010.)

The Court "shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully ... opposes a motion to compel an answer ... unless it finds that the one subject to the sanction acted with substantial justification." (CCP § 2025.480(j).) Substantial justification means a position "clearly reasonable because it is well-grounded in both law and fact." (*Doe v. United States Swimming, Inc.* (2011) 200 Cal.App.4th 1424, 1434.) Defendants' instructions were neither. They rested entirely on inadmissibility, relevance, privacy, and form objections that, as a matter of settled law under section 2025.460 and *Stewart*, do not authorize an instruction not to answer, a rule the Opposition does not acknowledge, let alone distinguish. The late-production theory supplies no justification either: it is not a recognized basis for an instruction not to answer; defense counsel had an opportunity to review the videos prior to deposition, but elected not to; and Plaintiff's counsel graciously provided defense counsel more than an hour to review the videos during the lunch break. Defense counsel still issued an instruction not to respond. Plaintiff was compelled to prepare this Motion, review the Opposition, prepare the Reply, and prepare for hearing, all as a result of Defendants' unjustified discovery conduct. The requested sanction is \$5,000.00. Mr. Twisk declares his hourly rate is \$400 per hour and asks for \$5,000 in sanctions but does not break down the amount in any way. The \$5,000 fee asks at a rate of \$400 per hours results in 12.5 hours of attorney time. However, this is not noted in the Amended Decl. of Twisk. A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought. (CCP § 2023.040.) The Court awards a reduced reasonable amount of \$2,000 (\$400 per hour for 5 hours).

The motion is granted, and the court awards sanctions in the reduced reasonable amount of \$2,000. The court will signed the proposed order, amending only the amount of sanctions from \$5,000 to \$2,000.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2602951	LMP REALTY ADVISORS, LLC VS TERRACOTTA TWO, LLC	DEMURRER

Tentative Ruling:

Defendant demurs to the fourth, eighth, and ninth causes of action on the grounds that each fail to state facts sufficient. (CCP § 430.10(e).)

Defendant satisfied the statutory meet-and-confer requirement with a telephone call. (Declaration of Andrew Lanphere, ¶ 5.)

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of Univ. of Cal.* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded and of facts which may be inferred from those expressly pleaded. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) A demurrer, however, does not admit contentions, deductions, or conclusions of fact or law. (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

Fourth Cause of Action – Enforcement of Permanent Injunction

Defendant first argues the fourth cause of action for enforcement of the permanent injunction obtained in CVRI 2104149 is procedurally improper because the correct method of enforcement would be a contempt proceeding in the aforementioned case, rather than a separate civil action for damages. In support, Defendant cites to *McFarland v. Superior Court* (1924) 194 Cal.407 (“*McFarland*”), *Gale v. Tuolumne County Water Co.* (1914) 169 Cal.46 (“*Gale*”), and *Astourian v. Superior Court* (1990) 226 Cal.App.3d 720 (“*Astourian*”). None of the cases cited by Defendant stand for the proposition that a contempt proceeding is the only way to enforce a permanent injunction. In fact, each of the three cases is in the context of a contempt proceeding making them factually distinguishable from this case. On reply, Defendant acknowledges this, stating, “Plaintiffs’ authorities establish only that contempt is not the exclusive remedy for an injunction violation – a point [Defendant] does not dispute.” (Defendant’s Reply, p. 1:9-10.) Defendant then tries to shift the burden to Plaintiffs, arguing Plaintiffs fail to cite authority permitting an “enforcement” cause of action. But as the party bringing this demurrer, Defendant fails to cite authority establishing that the cause of action fails to state facts sufficient on the grounds that a party cannot bring a separate civil cause of action for enforcement of a permanent injunction. Defendant goes on to argue that injunctive relief is a remedy, not a standalone cause of action. Although strictly speaking, an injunction is a remedy rather than a cause of action, a cause of action is also commonly used in pleading as applying only to the relief sought, even though separately pleaded claims have origin in the same right or obligation.

(*McDowell v. Watson* (1997) 59 Cal.App.4th 1155, 1159.) The elements of a cause of action for injunctive relief are (1) a tort or other wrongful act constituting a cause of action; and (2) irreparable injury, i.e., a factual showing that the wrongful act constitutes an actual or threatened injury to property or personal rights which cannot be compensated by an ordinary damage award.” (*Brownfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410.) To state a cause of action for an injunction, the complaint must plead facts that warrant injunctive relief. (*San Francisco v. Market S. R. Co.* (1950) 95 Cal.App.2d 648, 656.) The allegations are sufficient to state a claim regarding injunctive relief under the prior permanent injunction granted by the court. Defendant also argues the cause of action is duplicative, which has been recognized as a basis for sustaining a demurrer. (See *Rodrigues v. Campbell Industries* (1978) 87 Cal.App.3d 494, 501 [finding demurrer was properly sustained without leave to amend as to cause of action that contained allegations of other causes and “thus add[ed] nothing to the complaint by way of fact or theory of recovery”]; see also *Award Metals, Inc. v. Superior Court* (1991) 228 Cal.App.3d 1128, 1135.) However, this cause of action specifically points to the permanent injunction in CVRI 2104149 and enforcement of same, sufficiently distinguishing it from the fifth, sixth, and seventh causes of action which, as alleged, seek new declaratory and injunctive relief. For pleading purposes, this is sufficient. **The demurrer is overruled as to the 4th cause of action.**

Economic Loss Rule

Defendant next argues the eighth and ninth causes of action for nuisance and negligence are barred by the economic loss rule. Pursuant to the “economic loss rule,” there is generally no recovery in tort for negligently inflicted purely economic losses, meaning financial harm unaccompanied by physical or property damage. (*Rattagan v. Uber Techs., Inc.* (2024) 17 Cal.5th 1, 20.) Such claims are barred when they arise from or are not independent of the parties’ underlying contract. (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 924.) The economic loss rule prevents the law of contract and the law of tort from dissolving one into the other. (*Food Safety Net Services v. Eco Safe Systems USA, Inc.* (2012) 209 Cal.App.4th 1118, 1130.) The economic loss rule applies where the parties are in contractual privity and the plaintiff’s claim arises from the contract (in other words, the claim is not independent of the contract). (*Sheen, supra*, 12 Cal.5th at 923, [“Not all tort claims for monetary losses between contractual parties are barred by the economic loss rule. But such claims are barred when they arise from—or are not independent of the parties’ underlying contracts”].) As alleged, the eighth cause of action for nuisance makes no mention of the easement agreements. Rather, it alleges Defendant’s failure to maintain pavement, lighting, landscaping, irrigation, drainage, and curbs and abandonment of common areas caused injury to Plaintiffs’ enjoyment of their properties and operation of their businesses. (Complaint, ¶¶ 100-101.) These allegations sufficiently separate Plaintiffs’ claims from the underlying contracts.

However, the ninth cause of action for negligence as alleged specifically mentions Defendant breached the duty owed pursuant to the easement agreements. (*Id.* at ¶

105.) The allegations are such that the only alleged duty is contractual in nature, and thus, barred by the economic loss rule.

The demurrer is overruled as to the 8th cause of action but sustained as to the 9th cause of action, with ten (10) days leave to amend from the date of service of the notice of ruling or service of the signed order, whichever is first.

Moving party is ordered to submit a proposed order consistent with this ruling by no later than August 31, 2026, by 5:00 p.m.